



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

May 03, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20861
(SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of flammable liquids classed using an alternative test method (ASTM D7094-17a) OR (ASTM D6450) that is not currently authorized in § 173.120(c) for determining a liquid's flash point. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.120(c) in that the flash points of volatile organic liquids may in addition to incorporated test methods be determined by ASTM D7094-17a or the ASTM D6450-16a Test Method with the use of an Eralytics Eraflash Flashpoint Analyzer.
5. BASIS: This special permit is based on the application of Analytical Instruments Inc. dated April 22, 2019, submitted in accordance with § 107.105 and the public proceeding thereon and additional information dated March 28, 2023.

Tracking Number: 2023044476

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Any materials meeting the definition for Class 3 in 49 CFR § 173.120 (subject to the limitations of paragraph 7.a)	As appropriate	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES:

ASTM D7094-17a or ASTM D6450 Test Method may be used to determine the flash point of flammable liquids under the following conditions:

- a. Testing must be done using the Eralytics Eraflash Flashpoint Analyzer.
- b. ASTM D7094 -17a tests are only valid for materials with flash points between 35°C and 225°C. ASTM D6450-16a tests are only valid for materials with flash points between 10°C and 250°C.
- c. The tests must be conducted in accordance with the procedures outlined in the test method.
- d. The test can only be used on materials that are known to have flash points in the authorized temperature range based on at least one authorized test from 49 CFR § 173.120(c).
- e. This test method, and the Eralytics Eraflash Flashpoint Analyzer, must be validated each day prior to testing using two of the following: n-undecane, butyl acetate, anisole, and n-dodecane as analytical standards.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: This special permit imposes no additional modal requirements other than those in the HMR.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR " 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Dan B.", is written over a faint, circular official stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae